

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
RENARD GROOMS,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, Det. RICARDO BOCACHICA,
Det. ABDIEL ANDERSON and OFFICER[S] JOHN AND
JAMES DOE, names being fictitious and meant to
designate additional offending officers,
Defendants.

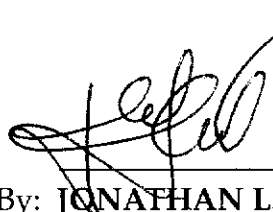
The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

November 4, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det. Ricardo Bocachica Shield No. 919 and Det. Abdiel Anderson Shield No. 1429
NARCBX, 1 Police Plaza, NY NY 10038 - Room 1310

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RENARD GROOMS,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. RICARDO BOCACHICA,
Det. ABDIEL ANDERSON and OFFICER[S] JOHN AND
JAMES DOE, names being fictitious and meant to designate
additional offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF RENARD GROOMS

1. At the time of the commencement of this action, plaintiff RENARD GROOMS
was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about September 10, 2014, Det. RICARDO BOCACHICA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about September 10, 2014, at approximately 1:40 P.M., Det. RICARDO BOCACHICA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about September 10, 2014, Det. ABDIEL ANDERSON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about September 10, 2014, at approximately 1:40 P.M., Det. ABDIEL ANDERSON was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about September 10, 2014, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about September 10, 2014 at approximately 1:40 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about September 10, 2014 at approximately 1:40 P.M., across from 237 East 194th Street, Bronx, New York, the plaintiff RENARD GROOMS was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine RENARD GROOMS.

12. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

13. That shortly prior to said arrest, plaintiff was lawfully at or near across the street from 237 East 194th Street, Bronx, New York, and briefly spoke with his cousin, Robert Wilson.

14. As plaintiff conversed with his cousin, Det. RICARDO BOCACHICA approached and stated, in sum and substance, "Don't move" to plaintiff and three other individuals in plaintiff's vicinity.

15. Immediately thereafter, Det. RICARDO BOCACHICA placed plaintiff RENARD GROOMS in handcuffs and placed plaintiff in a van.

16. Shortly thereafter plaintiff was removed from the van and Det. RICARDO BOCACHICA improperly searched plaintiff by swiping his hand in between plaintiff's buttocks cheeks, which constituted an assault and battery and invasion of plaintiff's privacy and dignity, and plaintiff was then returned to the van.

17. The aforesaid search revealed no item or thing, illicit or otherwise.

18. Thereafter, plaintiff was transported, ultimately, to the 47th Precinct, 4111 Laconia Avenue Bronx, New York.

19. After arriving at the 47th Precinct, Det. RICARDO BOCACHICA strip searched the plaintiff RENARD GROOMS without any reasonable articulable suspicion that plaintiff was secreting evidence underneath his clothing or within a bodily cavity.

20. Plaintiff remained at the precinct for a number of hours and was transported to Central Booking in Bronx County where, ultimately, he was arraigned before a justice and released on his own recognizance.

21. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

22. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

23. That during his detainment, plaintiff was subjected to invasive searched and was thereby assaulted and was battered and his privacy was grossly violated.

24. That the defendants Det. RICARDO BOCACHICA, Det. ABDIEL ANDERSON and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

25. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

26. That all criminal charges brought against plaintiff, which were brought under docket number 2014BX048769 in the Bronx Criminal Court regarding the incidents of September 10, 2014, were dismissed by the Honorable Marc Whiten on April 8, 2015, and the criminal proceedings were terminated in plaintiff's favor.

27. That all criminal charges brought against plaintiff were begun with actual malice and without probable cause and a reasonable belief that the prosecution would succeed.

28. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

29. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately two hundred and ten days.

30. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population, and testify falsely so often, omitting such acts or fabricating evidence under pretext, that such conduct is considered routine by the offending officers, without reprimand to the offending officers.

31. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy, practice, procedure and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

32. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

33. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

34. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

35. Additionally, defendants as named herein have condoned, permitted and caused a policy, practice and procedure of arresting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under the pretense of violating Penal Laws which specify the crime of possession of things where the arrested persons do not so possess, and falsely swearing that they observed innocent persons in possession of such things, or acting in concert for the sale and possessing of things falsely for the purposes of satisfying arrest quotas and thereafter searching said individuals without the above mentioned requisite articulable factual basis supporting a reasonable suspicion to believe the arrestee secreted evidence to humiliate and subjugate said minority persons,

36. Moreover defendant CITY OF NEW YORK is aware of the propensity of defendant Det. RICARDO BOCACHICA to falsely arrest persons and utilize excessive unnecessary force and commit other offenses which repeatedly violate innocent persons civil rights.

37. Upon information and belief, at least 21 other individuals have commenced actions against Det. RICARDO BOCACHICA with allegations of violations of their civil rights and that the Civilian Complaint Review Board has received and investigated at least 49 complaints regarding Det. RICARDO BOCACHICA.

38. Some of the individual who brought such claims with similar allegations to those alleged herein against Det. RICARDO BOCACHICA include but are not limited to: MILAGROS CRUZ on March 25, 2008 , MARCUS BONNER on November 7, 2009, BRIAN BONILLA on April 21, 2012, BRADFORD CAMPEAU-LAURION, JOSEPH PARIANTE, D. LORI DESANTIS, GEORGE TAYLOR, KEITH HAZEL, ERIC BROWN, ARNALDO LAUREANO and JOSE GONZALEZ on November 12, 2010 ALAN ROSENBAUM, JONATHAN RUIZ, SHANEE CLEMONS, CHRISTIAN LOPEZ, BENNY SANTIAGO on September 10, 2010 and numerous other individuals.

39. Moreover, patterns of such unlawful arrests of multiple persons is exhibited by a significant number of wrongful arrests of innocent persons who may have been in the area of other persons who were observed in illicit transactions but did not take part or act in concert of, but were nevertheless arrested, such as, as a small example, Jonathan Bailey on August 3, 2011; Jose Reyes on December 14, 2011; Frank Aquino on August 22, 2012; Martin Delozier and Terrance Watson on October 12, 2012; Bryan Madera on April

8, 2013; Anthony Jones on June 5, 2013, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

40. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance DAVE EVANS was improperly strip searched by officers of the 47th Precinct on October 21, 2009; ROY PATTERSON was improperly strip searched by officers of the 47th Precinct on June 9, 2009; BRYAN MONTES and DONIEL LEWIS and JOHN L. SCOTT were improperly strip searched by officers of the 47th Precinct on January 28, 2010; KEVIN GIBBS and KAMAL V. KERR were improperly strip searched by officers of the 47th Precinct on April 14, 2010 and ALAN ROSENBAUM was improperly strip searched by officers of the 47th Precinct on September 10, 2010 and DANIEL WILLIAMSON. Further, such wrongful strip searches are well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>,

and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

41. The herein above described actions and omissions, engaged in under the color of law by the named defendants and their commanders and supervisors, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

42. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the plaintiff RENARD GROOMS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF RENARD GROOMS

45. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That pursuant to the Order of Justice Mitchell J. Danziger of the Bronx County Supreme Court under Index No. 260310/15, dated May 7, 2015, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, nun pro tunc, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

47. That the CITY OF NEW YORK neglected to request or demand a General Municipal Law §50h hearing.

48. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

49. That on or about September 10, 2014 at approximately 1:40 P.M., across from 237 East 194th Street, Bronx, New York, the plaintiff RENARD GROOMS was improperly

arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine RENARD GROOMS.

50. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

51. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

52. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

53. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

54. That as a result of the foregoing, the plaintiff RENARD GROOMS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF RENARD GROOMS

55. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 54 as though more fully set forth herein.

56. That the defendants Det. RICARDO BOCACHICA, Det. ABDIEL ANDERSON and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

57. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

58. That all criminal charges brought against plaintiff, which were brought under docket number 2014BX048769 in the Bronx Criminal Court regarding the incidents of September 10, 2014, were dismissed by the Honorable Marc Whiten on April 8, 2015, and the criminal proceedings were terminated in plaintiff's favor.

59. That all criminal charges brought against plaintiff were begun with actual malice and without probable cause nor a reasonable belief that the prosecution would succeed.

60. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

61. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately two hundred and ten days.

62. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

63. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

64. That as a result of the foregoing, the Plaintiff RENARD GROOMS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FORTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF RENARD GROOMS

65. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 64 as though more fully set forth herein.

66. That following the aforementioned arrest, during his transportation to and at the 47th Precinct, 4111 Laconia Avenue Bronx, New York, the defendants, their agents, servants and/or employees employed invasively searched the plaintiff without a

reasonable articulable suspicion that he was secreting evidence underneath his clothing or within a bodily cavity, which constituted a battery and assault upon plaintiff and his privacy was grossly violated.

67. That said use of force and gross invasion of privacy did cause plaintiff fright, shock, fear, pain, discomfort, anxiety, emotional distress and physical consequences.

68. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

69. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

70. That as a result of the foregoing, the plaintiff RENARD GROOMS was damaged in a sum which exceeds the jurisdiction of all lower Courts..

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF RENARD GROOMS

71. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 70 as though more fully set forth herein.

72. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

73. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting arrests, use of force and proper search methods.

74. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff RENARD GROOMS was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

75. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Forth and Fifth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
November 4, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
RENARD GROOMS

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Ricardo Bocachica Shield No. 919 and Det. Abdiel Anderson Shield No. 1429
NARCB BX, 1 Police Plaza, NY NY 10038 - Room 1310

PLAINTIFF'S VERIFICATION

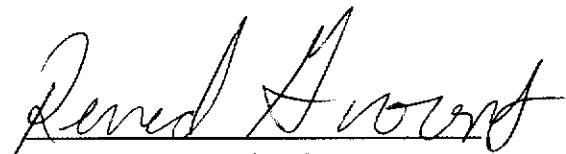
RENARD GROOMS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


RENARD GROOMS